

25STCV10462 25STCV10462

County: los-angeles
Division: Civil Law and Motion
Department: 731
Hearing date: 2026-09-08
Motion: MOTION TO COMPEL THE DEPOSITION OF MICHELLE MOCK WITH PRODUCTION OF DOCUMENTS
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Case Number: 25STCV10462 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ANDREA MARQUEZ, an individual,

Plaintiff,

vs.

GENERAL MOTORS, LLC, A Delaware Limited Liability Company; and DOES 1 through 20, inclusive,

Defendants.

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CASE NO: 25STCV10462

[TENTATIVE] ORDER RE: MOTION TO COMPEL THE DEPOSITION OF MICHELLE MOCK WITH PRODUCTION OF DOCUMENTS

Dept. 731

September 8, 2026

8:30 a.m.

Matter No. 12

Moving Party: Plaintiff, Andrea Marquez

Opposing Party: Defendant, General Motors, LLC

Notice: OK

Background Facts

Now before the Court is Plaintiff Andrea Marquez's opposed motion to compel the deposition of non-party, putative party-affiliated witness, Michelle Mock, an individual whose identity Defendant General Motors, LLC ("General Motors") did not disclose to Plaintiff, and whose deposition is sought for testimony to the effect of a person most qualified, as contemplated in Code of Civil Procedure section 2025.230.

Motion to Compel Deposition

Legal Standard

After a deposition notice has been properly served, if the party or designated deponent does not serve a valid objection pursuant to section 2025.410 and then fails to appear, fails to proceed with the deposition, or fails to produce the documents or other materials identified in the notice, the noticing party may move for a court order compelling the deponent to appear, testify, and produce the requested materials. (Code Civ. Proc., § 2025.450, subd. (a).)

Although Code of Civil Procedure section 2025.450 does not on its face apply to nonparties, courts regularly consider and grant motions to compel nonparties to attend depositions. (See, e.g., *Terry v. SLICO* (2009) 175 Cal.App.4th 352, 355 (Terry) [court considered motion to compel nonparty to attend deposition]; *Sears, Roebuck, & Co. v. National Un. Fire Ins.* (2005) 131 Cal.App.4th 1342, 1351 (Sears) [court held that subpoenaing party can move to compel when nonparty deponent does not appear or produce documents at deposition]; *Brun v. Bailey* (1994) 27 Cal.App.4th 641, 645-646 (Brun) [court considered motion to compel nonparty to attend deposition].)

If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (Code Civ. Proc., § 2025.230.)

Section 2025.450 contains no time limit for a motion to compel where a party fails to attend the deposition or produce any documents after valid service of the deposition notice and no objections have been made. (See Code Civ. Proc., § 2025.450, subds. (a)-(i)(2).)

If the motion seeks to compel production of documents, the motion must be accompanied by a showing of “good cause,” i.e., declarations containing specific facts justifying inspection of the documents described in the notice. (Code Civ. Proc., § 2025.450, subd. (b)(1); see Code Civ. Proc., § 2016.040.)

No “meet and confer” is required where the deponent “fails to attend the deposition and produce the documents ... described in the deposition notice.” In such cases, all that is required is a declaration by the moving party that the party has contacted the deponent “to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

Discussion

After review, the Court finds in favor of General Motors.

The record and papers before the Court show that Michelle Mock is neither a party to this action nor an individual designated by General Motors as a person most qualified as contemplated in Code of Civil Procedure section 2025.230. Consequently, Michelle Mock is a nonparty.

While the compelled attendance of a nonparty deponent can technically be sought pursuant to section 2025.450, as shown by Terry, Sears, and Brun cited above, such relief here is inappropriate for at least two reasons.

First, Plaintiff is in effect seeking to force General Motors to assign Michelle Mock as a quasi-person most qualified, which is inappropriate insofar as it attempts to circumvent the process in Code of Civil Procedure section 2025.230. Specifically, though the notice for the deposition of Michelle Mock fails to show any ‘categories of examination’ relating to General Motors, the requests for production attached to the deposition notice all relate to policies and procedures at General Motors. (See Motion, Barry Decl., ¶ 4, Ex. 1.) This is inappropriate because pursuant to section 2025.230, a non-natural person, such as General Motors, may be deposed via a person most qualified designated by the non-natural person, not by the noticing party. Separately, these circumstances contrast, for example, a notice to depose a non-party as to percipient personal knowledge of events occurred, which would not raise the same complications related to section 2025.230.

Second, Plaintiff has failed to show the relevance of the testimony of Michelle Mock in a context that is not, in essence, a person most qualified for General Motors.

Under these circumstances, relief is not appropriate.

Conclusion

Plaintiff Andrea Marquez's motion to compel deposition is accordingly DENIED.

Plaintiff Andrea Marquez is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court